

Court No. - 40

Case :- WRIT - C No. - 38317 of 2023

Petitioner :- Kamlawati Singh

Respondent :- Managing Director Purvanchal Vidhut Vitaran Nigam Limited
And 3 Others

Counsel for Petitioner :- Rajesh Kumar

Counsel for Respondent :- Chetan Chatterjee

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Shri Rajesh Kumar, learned counsel for the petitioner and Shri Chetan Chatterjee, learned counsel appearing for the respondents.

2. The petitioner has prayed for the following reliefs :-

"(i) issue a writ, order or direction in the nature of mandamus directing the respondents to provide the copy of agreement to the petitioner in pursuance of the installation of meter dated 25.09.2017 bearing Meter no. X0153190.

(ii) issue a writ, order or direction in the nature of mandamus directing the respondents to adjust the deposited amount as excess penalty imposed in the bills.

(iii) issue a writ, order or direction in the nature of mandamus directing the respondents to execute fresh agreement in regard to the enhanced load."

3. Shri Chetan Chatterjee placed the detailed instructions along with last communication dated 06.09.2019 along with the office order dated 12.04.2019 and the Bill dated 11.06.2019. Learned counsel for the petitioner states that the letter dated 06.09.2019 was never served upon to the petitioner nor the copy of the agreement has been given to the petitioner. Shri Chetan Chatterjee, learned counsel for the Corporation raised an objection that, at this belated stage, such objection cannot be maintained. Moreover, the petitioner has efficacious remedy to press the relief under Clause 6.5 or 5.6 of the Electricity Supply Code, 2005. He submits that, in case, the petitioner approaches to the concerned Executive Engineer under the aforesaid provision, definitely, the grievance of the petitioner would be redressed in accordance with law.

4. Considering the facts and circumstances, as the copy of the instructions is taken, as it is also alleged that till date, the agreement which was entered between the parties in the year 2017,

the same is also not provided to the petitioner and in absence of the same, the petitioner could not invoke the remedy as provided in the aforesaid Code.

5. Considering the facts and circumstances, we are not inclined to adjudicate the matter. In case, petitioner approaches within a week's time, the respondents would provide the agreement which was entered between the parties in the year 2017, thereafter, the petitioner would be at liberty to press the relief under the aforesaid Code in further a week's time and the same would be considered as per law by the competent authority in further six weeks.

6. With the aforesaid, the writ petition stands **disposed of**.

Order Date :- 11.12.2023

Rama Kant